Student Complaint Procedure

OFFICIAL UNIVERSITY WEBPAGE SNAPSHOT (PROJECT-CREATED PDF, NOT AN OFFICIAL CATALOG)

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The University has grievance procedures to provide students, employees, or applicants an opportunity to file a complaint of illegal discrimination of any kind.

A student may make an informal complaint or inquiry in one of the following areas by contacting the office or individual noted. In order to file a grievance, contact the appropriate person below or see the grievance procedures published in the student handbook .

Academic Appeals concerning grades or academic discipline such a plagiarism, class absence, etc.

The student should complete the Academic Appeals form and submit to the following person, who has been designated to handle inquiries or complaints regarding academic appeals:

Dr. Machica McClain Vice President for Academic Affairs (Oversees Academic Appeals Committee) Gatliff Administration Building (606) 539-5580

Academic Standing concerning probation/suspension or academic bankruptcy.

The following person has been designated to handle inquiries or complaints regarding academic standing:

Dr. Brandy Martin Assistant Vice President for Records and Registration (Chair of Academic Standing Committee) Gatliff 116B (606) 539-3578

Harassment involving faculty, staff, or students.

University of the Cumberlands is committed to maintaining an environment which respects the dignity of all individuals. Accordingly, University of the Cumberlands will not tolerate sexual harassment by or of its students, faculty, or employees. For more information regarding Title IX , please visit our webpage: https://www.ucumberlands.edu/about/title-ix .

The following person has been designated to handle employee inquiries or complaints regarding the sex nondiscrimination policy, including compliance with Title IX of the Education Amendments of 1972, as well as all other portions of the nondiscrimination policy:

Dr. Jamirae Holbrook Vice-President for Student Affairs | Title IX Coordinator Boswell Campus Center (606) 539-4120; jamirae.holbrook [at] ucumberlands.edu (jamirae[dot]holbrook[at]ucumberlands[dot]edu)

Matthew Plementosh Student Crisis & Support Services Coordinator | Deputy Title IX Coordinator Boswell Campus Center (606) 539-5545; matthew.plementosh [at] ucumberlands.edu (matthew[dot]plementosh[at]ucumberlands[dot]edu)

The following person has been designated to handle employee inquiries or complaints with all other portions of the non-discrimination policy:

Mr. Steve Allen Human Resources Director Gatliff 001 (606) 539-4219; steve.allen [at] ucumberlands.edu (steve[dot]allen[at]ucumberlands[dot]edu)

The following person has been designated to handle student inquiries or complaints regarding the sex non-discrimination policy including compliance with Title IX of the Education Amendments of 1972, as well as all other

portions of the nondiscrimination policy:

Dr. Jamirae Holbrook Vice-President for Student Affairs | Title IX Coordinator Boswell Campus Center (606) 539-4120; jamirae.holbrook [at] ucumberlands.edu (jamirae[dot]holbrook[at]ucumberlands[dot]edu)

Complaints may also be submitted to the U.S. Department of Education Office for Civil Rights: 1-800-421-3481.

Social Discipline and Other Grievances involving faculty, staff or students.

A student may file a formal grievance or appeal any adverse or unfair decision by a program, department, faculty, or staff member of the University, including a disciplinary decision for violation of University rules and regulations rendered ten (10) calendar days after the decision is communicated. This process can be initiated by filing a formal written grievance or an incident report form, as described in Student Handbook Section "Reporting an Incident to the University.

Students, Faculty, and Staff are encouraged to report any violation of UC's student standards of conduct that they witness or have knowledge of. Examples include, but are not limited to, accident/injury, conduct violations, sexual harassment, other portions of the nondiscrimination policy, crimes, etc. Any member of the university can submit an incident report through email, phone, or other messaging, as well as using the below Incident Report Form link. Incident reports will be routed to the most appropriate department, and they will be reviewed to determine appropriate next steps.

The Incident Report Form can be found on https://www.ucumberlands.edu/safety and then click on the "Report an Incident" link.

Students, Faculty, or Staff may access these forms directly here: GUEST REPORTING FORM or CAMPUS USER REPORTING FORM .

Report Form Tips:

• Do your best to include the student's name and/or ID number for all parties involved. If the party involved is not a student, please include their full name.

• Choose the conduct violation(s) that best match the incident. A University Official can alter these selections after submission, if needed.

• Try to use objective, factual language in the description of the incident. Keep in mind that the incident report may be read directly to an individual involved in an incident.

• If referencing any evidence that can be attached to the incident report, please describe that in detail in the textbox and then it can be collected after the report is reviewed.

• Be sure to click "Submit" at the bottom.

Students with Disabilities: University of the Cumberlands provides procedures for resolving disputes related to services for students with disabilities, including complaints that a student has been discriminated against because of his or her disability.

The following person has been designated to handle inquiries or complaints regarding the disability non-discrimination policy, including compliance with Section 504 of the Rehabilitation Act of 1973:

Ms. Shirley Stephens Director of Student Accommodations Gatliff Administration Building, Academic Affairs Office Suite (606) 539-4214; shirley.stephens [at] ucumberlands.edu (shirley[dot]stephens[at]ucumberlands[dot]edu)

Financial Disputes. Questions or concerns regarding students' tuition and fees or financial aid can be resolved by contacting either the Office of Student Accounts or Financial Aid .

If a resolution is not achieved through informal dialogue, the student may file a formal written complaint following procedures articulated for each area within the Student Handbook . The disposition of all formal written complaints is subject to review by the President of the University.

COMPLAINT RESOLUTION PROCESS FOR SARA STATES

States operating under the State Authorization and Reciprocity Agreement (SARA) have agreed to allow their SARA state portal agency investigate and resolve any complaints that have not been resolved through an institution's own procedures for resolution of grievances. The SARA Complaint Resolution Process is provided in Section 4.2 of the NC-SARA State Authorization Reciprocity Agreements Policies and Standards .

Participating SARA States: Alabama, Alaska, Arizona, Arkansas, Colorado, Connecticut, Delaware, District of Columbia, Florida, Georgia, Hawaii, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Montana, Nebraska, Nevada, New Hampshire, New Jersey, New Mexico, New York, North Carolina, North Dakota, Ohio, Oklahoma, Oregon, Pennsylvania, Puerto Rico, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, US Virgin Islands, Utah, Vermont, Virginia, Washington, West Virginia, Wisconsin, Wyoming.

COMPLAINT RESOLUTION PROCESS FOR KENTUCKY

Per the Kentucky Council for Post Secondary Education, “In accordance with 13 KAR 4:010, a non-resident student attending a Kentucky college or university operating through the State Authorization Reciprocity Agreement (SARA) must first exhaust all internal procedures for complaint resolution offered by the college or university before filing a complaint . In addition, the incident giving rise to the complaint must have occurred within two years of filing.”